

AFFIDAVIT FOR SEARCH WARRANT

Commonwealth of Virginia

VA. CODE § 19.2-54

The undersigned Applicant states under oath:

1. A search is requested in relation to ☐ an offense substantially described as follows:
☐ a person to be arrested for whom a warrant or process for arrest has been issued identified as follows:

☐ CONTINUED ON ATTACHED SHEET

2. The place, person or thing to be searched is described as follows ☐ and is a place of abode:

☐ CONTINUED ON ATTACHED SHEET

3. The things or persons to be searched for are described as follows:

☐ The above are electronic records and are actually or constructively possessed by a foreign corporation that is transacting or has transacted business in the Commonwealth. The material facts establishing such belief are:

☐ CONTINUED ON ATTACHED SHEET

(OVER)

FILE NO.

AFFIDAVIT FOR SEARCH WARRANT

APPLICANT:

NAME

TITLE (IF ANY)

ADDRESS

Certified to Clerk of

..... Circuit Court
CITY OR COUNTY

on
DATE

TITLE

SIGNATURE

Original Delivered ☐ in person ☐ by certified mail
☐ by electronically transmitted facsimile
☐ by use of filing/security procedures
defined in the Uniform Electronic
Transactions Act

to Clerk of Circuit Court
CITY OR COUNTY WHERE EXECUTED

on
DATE

TITLE

SIGNATURE

4. The material facts constituting probable cause that the search should be made are:

.....

5. The object, thing or person to be searched for ☐ constitutes evidence of the commission of such offense ☐ is the person to be arrested for whom a warrant or process for arrest has been issued.

6. ☐ Authorization to execute a search warrant of a place of abode other than in the daytime hours between 8:00 a.m. and 5:00 p.m. is requested.
The material facts constituting good cause for such authorization are:

.....

☐ Reasonable efforts were made to locate a judge, and a judge is not available, before seeking authorization from a magistrate to execute a search warrant other than in the daytime hours between 8:00 a.m. and 5:00 p.m., with those reasonable efforts being as follows:

OR ☐ Reasonable efforts were not made to locate a judge as the following circumstances require the issuance of the search warrant after 5:00 p.m.:

.....

7. ☐ I have personal knowledge of the facts set forth in this affidavit AND/OR

☐ I was advised of the facts set forth in this affidavit, in whole or in part, by one or more other person(s). The credibility of the person(s) providing this information to me and/or the reliability of the information provided may be determined from the following facts:

.....
The statements above are true and accurate to the best of my knowledge and belief.

.....
TITLE OF APPLICANT

APPLICANT

Subscribed and sworn to before me this day.

.....
DATE AND TIME

☐ CLERK ☐ MAGISTRATE ☐ JUDGE